

SENATE BILL 477

By Jackson

AN ACT to amend Tennessee Code Annotated, Section 9-8-108, relative to compensation for persons who are wrongfully imprisoned.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 9-8-108(a)(7), is amended by deleting the following:

Shall hear claims for compensation by persons wrongfully imprisoned and granted exoneration pursuant to § 40-27-109.

and substituting instead the following:

Shall hear claims for compensation by persons wrongfully imprisoned and granted exoneration pursuant to § 40-27-109, and by persons wrongfully imprisoned whose sentences are vacated pursuant to § 40-30-102(b)(2), § 40-30-117(a)(2), § 40-26-105, or other law where actual innocence is determined, and the charges are subsequently dismissed.

SECTION 2. Tennessee Code Annotated, Section 9-8-108(a)(7)(C), is amended by deleting the subdivision and substituting instead the following:

(i) If a person eligible to file a claim pursuant to this subdivision (a)(7) dies prior to filing a claim, then the claim may be brought by the surviving spouse or children, subject to the conditions of subdivision (a)(7)(F);

(ii) If the person dies without leaving a surviving spouse or surviving children, then the payments must cease. Upon the death of the claimant, any monthly installments left remaining must be paid to the claimant's surviving spouse and surviving children in equal portions. The amount payable to the surviving spouse, if any, must be

paid until the surviving spouse's death or remarriage. If the surviving spouse dies or remarries, then the amount that was payable to the surviving spouse must be divided equally among the claimant's surviving children. Each child must receive the child's share until death, at which time the amount must be redistributed equally among the remaining children;

SECTION 3. Tennessee Code Annotated, Section 9-8-108(a)(7)(F), is amended by deleting the subdivision and substituting instead the following:

(F) A claim for compensation under this subdivision (a)(7) must be filed with the board no later than one (1) year from the date that the claimant is granted exoneration pursuant to § 40-27-109, or the dismissal of charges, after the conviction is vacated pursuant to § 40-30-102(b)(2), § 40-30-117(a)(2), § 40-26-105, or other law. A person whose conviction was vacated and dismissed, pursuant to § 40-30-102(b)(2), § 40-30-117(a)(2), § 40-26-105, or other law prior to the effective date of this act, has one (1) year from the effective date of this act, to file a claim with the board;

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.